

FOR NEW LICENSES AND TRANSFER
LICENSE AND/OR PERMIT APPLICATION
FOR LIQUOR, COUNTY MALT BEVERAGE, LIMITED, WINERY OR MICROBREWERY

To be completed by the City, Town or County Clerk:

Date Filed: 9/30/15 WMP 124207

Basic Fee:	Annual Fee	Prorated Fee
	\$ <u>1500.00</u>	\$ _____
Add'l Dispensing Room Fee:	\$ _____	\$ _____
Transfer Fee:	\$ _____	\$ _____
Total License Fee Collected	\$ <u>1500.00</u>	\$ _____
Publishing Fee Collect:	\$ <u>100.00</u>	\$ _____

Required Attachments Received: Yes ☒ No ☐

Advertising Dates(4): Oct. 20, 27, 2015

Hearing Date: Nov. 19, 2015

Local Licensing Number: _____

For the license term: upon issuance
Month Day Year

Through: March 31, 2016
Month Day Year

A copy must be immediately forwarded to:
State of Wyoming Liquor Division
1520 E 5th Street
Cheyenne WY 82002-0110

Formerly Held by: _____

Applicant: Cheyenne Event Center + Pershing Plaza LLC

Trade Name (dba): TBD

Premise Address: 1620 Pershing Blvd
Number & Street

Chey Wyo 82009 Laramie
City State Zip County

Mailing Address: 6101 Yellowstone Rd
Number & Street or P.O. Box

Chey Wyo 82009
City State Zip

Business Telephone Number: (307) 432-4140

Fax Number: _____

E-Mail Address: Ahanzen@wercs.com
cell 307-274-5678

LICENSING AUTHORITY: Begin publishing promptly. As W.S. 12-4-104(d) specifies: **NO LICENSING AUTHORITY SHALL APPROVE OR DENY THE APPLICATION UNTIL THE LIQUOR DIVISION HAS CERTIFIED THE APPLICATION IS COMPLETE.**

FILING FOR ☒ NEW ☐ TRANSFER LOCATION ☐ TRANSFER OWNERSHIP FILING IN (CHOOSE ONLY ONE) ☒ CITY OF <u>Cheyenne</u> ☐ COUNTY OF _____ FILING AS (CHOOSE ONLY ONE) ☐ INDIVIDUAL ☒ LLC ☐ PARTNERSHIP ☐ LLP ☐ CORPORATION ☐ LTD PARTNERSHIP ☐ ASSOCIATION ☐ ORGANIZATION	TYPE OF LICENSE OR PERMIT (CHOOSE ONLY ONE) ☒ RETAIL LIQUOR LICENSE ☒ on-premise only ☐ off-premise only ☐ combination on/off premise ☐ RESTAURANT LIQUOR LICENSE ☐ RESORT LIQUOR LICENSE ☐ COUNTY RETAIL or SPECIAL MALT BEVERAGE PERMIT ☐ VETERANS CLUB ☐ FRATERNAL CLUB ☐ GOLF CLUB ☐ SOCIAL CLUB ☐ MICROBREWERY ☐ WINERY ☐ BAR AND GRILL ☐ LOCATED WITHIN 5 MILES OF CITY (County License only)	To Assist the Liquor Division with scheduling inspections: DO YOU OPERATE? ☒ FULL TIME (e.g. Jan through Dec) ☐ SEASONAL/PART-TIME (specify months of operation) from <u>Jan</u> to <u>Dec</u> DAYS OF WEEK (e.g. Mon through Sat) <u>Mon - Sun</u> HOURS OF OPERATION (e.g. 10a - 2a) <u>As rented</u> <u>8am - 12am</u>
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1. Location of License:

(a) Give a description of the dispensing room and state where it is located in the building (e.g. 10x12 room in SE corner of 1st floor of building). If the building is not in existence, provide the location and an architect's drawing or suitable plans of the room and premises to be licensed: If Winery or Microbrewery, also list manufacturing facility. W.S. 12-4-102(a)(i): (Please submit a drawing of dispensing room)

10x20 room in the northeast corner of building

(b) Do you have an additional dispensing room? ☐ YES ☒ NO If yes, provide description and location:

(c) Provide the legal description and the zoning of the site where the applicant will conduct business:

Portion of Block 28 East Ridge 4th East Filing Land CB

2. Do you W.S. 12-4-103 (a) (iii):

(1) OWN the building in which sales room is located? ☒ YES (own)
 (2) LEASE the building in which sales room is located? ☒ YES (lease)

(A) DATE lease expires 12-31-2030 located on page 2 paragraph 1.02 of lease document.

(B) Provision for SALE of alcoholic or malt beverages located on page 2 paragraph 1.03 of lease.

NOTE: Attach a true copy of the lease to application. Lease **MUST** contain provision for **SALE OF ALCOHOLIC or MALT BEVERAGES** and be valid **THROUGH** the **TERM OF THE LICENSE** W.S. 12-4-103(a)(iii).

3. Have you already assigned, leased, transferred or do you intend to assign, lease, transfer, contract or in any other manner agree with any person or firm other than yourself as licensee to operate and assert control or partial control of the license and the licensed room to carry on the licensed liquor business? ☐ YES ☒ NO

4. Does any manufacturer, brewer, rectifier, wholesaler, or through a subsidiary affiliate, officer, director or member of any such firm: W.S. 12-5-401, 12-5-402, 12-5-403
- (a) Hold any interest in the license applied for? ☐ YES ☒ NO
- (b) Furnish by way of loan or any other money or financial assistance for purposes hereof in your business? ☐ YES ☒ NO
- (c) Furnish, give, rent or loan any equipment, fixtures, interior decorations or signs other than standard brewery or manufacturer's signs? ☐ YES ☒ NO
- (d) If you answered YES to any of the above, explain fully and submit any documents in connection therewith:

5. Does applicant have any interest or intent to acquire an interest in any other retail liquor license to be issued by this licensing authority? W.S. 12-4-103(b) ☐ YES ☒ NO
- If "YES", explain: _____

6. Is applicant a mayor, member of a city or town council, or member of the board of county commissioners within the jurisdiction of this licensing authority? W.S. 12-4-103(a)(i) ☐ YES ☒ NO

7. Is applicant employed by the State, City or Town, or County as a law enforcement officer, or hold office as a law enforcement officer through election? W.S. 12-4-103(a)(ii) ☐ YES ☒ NO

RESTAURANT OR BAR AND GRILL LICENSE: Complete questions 8(a) and 8(b):

8. (a) Have you submitted a valid food service permit upon application? ☐ YES ☐ NO - NA -
- W.S. 12-4-407(a) W.S. 12-4-413(a)
- (b) Was your dispensing room for alcoholic and/or malt beverages in existence and open for consumption purposes prior to February 1, 1979? W.S. 12-4-410(b) ☐ YES ☐ NO ☐ N/A

RESORT LICENSE: Complete questions 9(a) through 9(c):

9. (a) Is the actual valuation of the resort complex at least one million dollars, or have you committed or expended at least one million dollars (\$1,000,000.00) on the complex, excluding the value of the land? W.S. 12-4-401(b)(i) ☐ YES ☐ NO - NA -
- (b) Does the resort complex include a restaurant and a convention facility which will seat at least one hundred (100) persons? W.S. 12-4-401(b)(ii) ☐ YES ☐ NO
- (c) Does the resort complex include motel or hotel accommodations with at least one hundred (100) sleeping rooms? W.S. 12-4-401(b)(iii) ☐ YES ☐ NO

MICROBREWERY AND/OR WINERY LICENSE: Complete questions 10 through 11:

10. Is premise to be co-existent with a retail, restaurant, resort or bar and grill liquor license? ☐ YES ☐ NO - NA -
- W.S. 12-4-412(b)(iii)

If "YES", please specify type: ☐ Microbrewery ☐ Winery ☐ Retail
☐ Restaurant ☐ Resort ☐ Bar & Grill:

11. (a) Do you self distribute your products? ☐ YES ☐ NO
- (b) Do you distribute your products through an existing malt beverage wholesaler? ☐ YES ☐ NO

ORGANIZATION AND/OR CLUB LICENSE: Complete questions 12 through 15 as applicable:

12. FRATERNAL CLUBS W.S. 12-1-101(a)(iii)(B)

- (a) The name and address of the grand lodge or national organization is: - NA -
- (b) Does lodge or fraternal organization hold a charter from a national organization or national grand lodge? ☐ YES ☐ NO
- (c) Has the fraternal organization been actively operating in at least thirty-six (36) states? ☐ YES ☐ NO
- (d) Has the fraternal organization been actively in existence for at least twenty (20) years? ☐ YES ☐ NO

13. VETERANS CLUBS W.S. 12-1-101(a)(iii)(A):

- (a) The name and address of the National Veterans organization is: - NA -
- (b) Has the Veteran's organization been chartered by the Congress of the United States for patriotic, fraternal or benevolent purposes? ☐ YES ☐ NO
- (c) Is the membership of the Veteran's organization comprised only of Veterans and its duly organized auxiliary? ☐ YES ☐ NO

14. SOCIAL CLUBS W.S. 12-1-101(a)(iii)(E):

- NA -

- (a) Do you have more than one hundred (100) bona fide members who are residents of the county in which the club is located? ☐ YES ☐ NO
- (b) Is the club incorporated and operating solely as a nonprofit organization under the laws of this state? ☐ YES ☐ NO
- (c) Is the club qualified as a tax exempt organization under the Internal Revenue Service? ☐ YES ☐ NO
- (d) Has the club been in continuous operation for a period of not less than one (1) year? ☐ YES ☐ NO
- (e) Has the club received twenty-five dollars (\$25.00) from each bona fide member as recorded by the secretary of the club and are club members at the time of this application in good standing by having paid at least one (1) full year in dues? ☐ YES ☐ NO
- (f) Does the club hold quarterly meetings and have an actively engaged membership carrying out the objectives of the club? ☐ YES ☐ NO
- (g) Have you filed a true copy of your bylaws with the local licensing authority and the Wyoming Liquor Division? ☐ YES ☐ NO
- (h) Has at least fifty one percent (51%) of the membership signed a petition indicating a desire to secure a Limited Retail Liquor License?
(THE PETITION MUST BE ATTACHED TO APPLICATION) ☐ YES ☐ NO
- (i) Have you filed with the licensing authority and the Wyoming Liquor Division a detailed statement of your activities during the preceding year which were undertaken or furthered in pursuit of the objectives of the club, along with an itemized statement expended for such activities? ☐ YES ☐ NO

15. GOLF CLUBS W.S. 12-1-101(a)(iii)(D):

- NA -

- (a) Do you have more than fifty (50) bona fide members? ☐ YES ☐ NO
- (b) Do you own, maintain, or operate a bona fide golf course together with clubhouse? ☐ YES ☐ NO

16. (a) If applicant is an Individual or Partnership: State the name, date of birth and residence of each applicant or partner, if the application is made by more than one individual or by a partnership.
If the application is for a Club: State the name, date of birth and residence of each officer.

True and Correct Name	Date of Birth	DONOT LIST PO BOXES Residence Address No. & Street City, State & Zip	Residence Phone Number	Have you been a DOMICILED resident for at least 1 year and not claimed residence in any other state in the last year?	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
Arthur Ray Hansen	1/11/60	3655 Piper Lane Cheyenne Wyo	307-274-5628	YES ☒	YES ☐	YES ☐
				NO ☐	NO ☒	NO ☒
				YES ☐	YES ☐	YES ☐
				NO ☐	NO ☐	NO ☐
				YES ☐	YES ☐	YES ☐
				NO ☐	NO ☐	NO ☐
				YES ☐	YES ☐	YES ☐
				NO ☐	NO ☐	NO ☐

(If more information is required, list on a separate piece of paper and attach to this application.)

- (b) If the applicant is a Corporation, Limited Liability Company, Limited Liability Partnership or Limited Partnership: State the name, date of birth and residence of each stockholder holding, either jointly or severally, ten percent (10%) or more of the outstanding and issued capital stock of the corporation, limited liability company, limited liability partnership, or limited partnership, and every officer, and every director.

True and Correct Name	Date of Birth	DONOT LIST PO BOXES Residence Address No. & Street City, State & Zip	Residence Phone Number	No. of Years in Corp or LLC	% of Stock Held	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
Arthur Ray Hansen	1/11/60	3655 Piper Lane Cheyenne Wyo	307-274-5628	NEW	100%	YES ☐	YES ☐
						NO ☒	NO ☒
						YES ☐	YES ☐
						NO ☐	NO ☐
						YES ☐	YES ☐
						NO ☐	NO ☐
						YES ☐	YES ☐
						NO ☐	NO ☐

(If more information is required, list on a separate piece of paper and attach to this application.)

OATH OR VERIFICATION

(Requires signatures by ALL Individuals, ALL Partners, ONE (1) LLC Member, or TWO (2) Corporate Officers or Directors except that if all the stock of the corporation is owned by ONE (1) individual then that individual may sign and verify the application upon his oath, or TWO (2) Club Officers.) W.S. 12-4-102(b)

Under penalty of perjury, and the possible revocation or cancellation of the license, I swear the above stated facts, are true and accurate.

STATE OF WYOMING)

SS.

COUNTY OF Laramie

Before Me, Debra A. Janicek (specify)
(Printed name of Notary or other officer authorized to administer oaths)

a Notary Public, Officer authorized to administer oaths in and for

Laramie County, State of Wyoming, personally appeared

Arthur Ray Hansen name he/she being first duly sworn
(Insert Names)

by me upon his oath, says that the facts alleged in the foregoing instrument are true.

(Seal)



1. Art Ray
2. _____
3. _____
4. _____

My Commission expires: 11/10/15

Witness my hand and official seal

Debra A. Janicek
(Notary Public or other officer authorized to administer oaths)

Title NotaryDated: 9/25/15**REQUIRED ATTACHMENTS:**

- (a) Attach any lease agreements W.S. 12-4-103 (a) (iii).
- (b) If the building is not in existence, an architect's drawing or suitable plans of the room and the premises to be licensed must be attached W.S. 12-4-102 (a) (i).
- (c) A statement indicating the financial condition and financial stability of the applicant W.S. 12-4-102 (a) (v).
- (d) Restaurant or Bar & Grill Liquor License applicants must include a copy of the CURRENT food service permit W.S. 12-4-407 (a) or 12-4-413 (a).
- (e) Include a drawing of the dispensing room W.S. 12-5-201 (a).
- (f) Check or bank draft as payment for the application and publishing the notice of application (Direct billing is permissible for publication fees) W.S. 12-4-101-4 (a).
- (g) If transferring a license from one ownership to another, a form of assignment from the current licensee to the new applicant authorizing the transfer W.S. 12-4-601 (b).

ADVERTISING REQUIREMENTS W.S. 12-4-104(a):

When an application for a license, permit, renewal or any transfer of location or ownership thereof has been filed with a licensing authority, the clerk shall promptly prepare a notice of application, place the notice conspicuously upon the premises shown by the application as the proposed place of sale and public the notice in a newspaper of local circulation once a week for four (4) consecutive weeks. The notice shall state that a named applicant has applied for a license, permit, renewal or transfer thereof, and that protests against the issuance, renewal, or transfer of the license or permit will be heard at a designated meeting of the licensing authority.

FOR LIQUOR DIVISION USE ONLY		
Reviewer	Initials	Date
Agent:		
Chief:		
Acct.:		

LEGAL DESCRIPTION

The legal description of the main site totaling 6.67 acres is as follows.

Exhibit "A"

Legal Description of Property

A portion of Block 28, Eastridge, Fourth Filing, an Addition to the City of Cheyenne, Laramie County, Wyoming, and being more particularly described as follows:

Beginning at the Southeast corner of said Block 28; thence North 89 degrees 50 minutes West, along the South boundary of said Block 28, a distance of 416.96 feet to a point; thence North 0 degrees 20 minutes East, parallel to the East boundary of said Block 28, a distance of 646.08 feet to a point; thence on a curve to the left whose radius is 1306.38 feet and whose long chord bears North 81 degrees 27.28 minutes East, a distance of 403.65 feet to a point on a curve on the Easterly boundary of said Block 28; thence along the Easterly boundary of said Block 28, along a portion of a curve whose radius is 606.28 feet and the chord of which bears South 6 degrees 41.57 minutes East, a distance of 148.32 feet to the point of tangent; thence South 0 degrees 20 minutes West, along the East boundary of said Block 28, a distance of 559.96 feet to the point of beginning.

Property address: 1600 East Pershing Boulevard, Cheyenne, Wyoming

Northern Access Road

According to the assessor, the northern access road totals 0.37 acre in size. The legal description as given in Book 2085 Page 938 is as follows.

EASTRIDGE, 4TH FILING: A POR OF BLOCK 28, DESC AS: (INTERNALLY FROM BK 741 PG 152, LESS BK 1552 PG 1510 & BK 757 PG 314), BEG AT THE SE COR OF SD BLOCK 28; TH N89DEG50'W, ALONG THE STRN BNDRY OF SD BLK, 416.96' TO THE WSTRLY BNDRY OF PROPERTY DESC IN BK 1686 PG 1979; TH N0DEG20'E, ALONG SD WSTRLY BNDRY, 646.08' TO THE POB OF THE PROPERTY TO BE DESC; TH CONT N0DEG20'E, 40.02', TO A PNT ON THE NTHRLY BNDRY OF BLK 28; TH ALONG THE NTHRLY BNDY OF SD BLK (ALSO BEING TH NTHRLY BNDRY OF PROPERTY DESC IN BK 757 PG 314), ALONG A CURVE TO THE R, RADIUS 1266.38' (CHORD BEARING N81DEG25'E, 392.58') TO THE NE COR OF SD BLK 28; TH S15DEG33'E, ALONG THE ESTRLY BNDRY OF SD BLK 28, 40.07', TO A PNT ON THE ESTRLY BNDRY OF SD BLK (ALSO BEING THE NE COR OF PROPERTY DESC IN BK 1686 PG 1976); TH ALONG A CURVE TO THE R, RADIUS 1306.38' (CHORD BEARING N81DEG27'E, 403.65'), TO THE POB.

Dispensing room located in the North East corner of the Building

Arthur Hansen

September 25, 2015

City of Cheyenne
2101 O'Neal Avenue
Cheyenne, WY 82001

Dear Mayor and Members of the City Council,

The Cheyenne Event Center at the Plaza is being designed to provide a Family, Social, and Business event center. It is specifically designed to fill a gap in event centers in Cheyenne. This center has 2,500 to 20,000 square foot available and will be able to accommodate 1 to 300 guests with indoor and outdoor space for weddings, private parties, receptions, and business meetings. This center is currently being designed by Randy Byers of TDSI and a private design consulting firm so that the interior will be new and up to date to address the needs and desires of the people of Cheyenne. The sale of liquor will not be allowed to the general public. Liquor will only be sold to patrons that attend an event that rented the center. There will be no drive up sales. The business plan projects to hire 5 to 8 employees that are or will be properly educated in serving Liquor. TIPS training and reviews annually will be required. Food services will be provided by catering services or local restaurants.

WERCS is a corporation and it owns the building located at 1620 Pershing Blvd. I'm a shareholder in the WERCS corporation. WERCS will complete the building improvements, provide the investment capital for the Liquor license fees, and provide a lease for the space, in consideration for the rental fees for the Event center.

Susie Stultz is a current liquor license holder and a professional caterer. She will be partnering or working for WERCS to provide Professional Management training for the sale of liquor and catering. In addition, Weracs is in the process of hiring an additional professional event center manager from Casper to assist in management and training as well.

Mayor Rick, Council members, Annette, Scott, Bryan, Mark, Dicky, Jim, Richard and Mike. I have secured the location, the financial backing, the professional management and training, and the employees necessary to make this business a success. Most of you know me and that my personal and professional mission is to "Improve the quality of life of the people that surround me". This business will increase the Event Center's chances of success. It will also provide a service to families and organizations of Cheyenne who wish to come together to celebrate or socialize in an environment of their choosing. Is also provides me an opportunity to become an entrepreneur and a owner of a business that provides an environment for people to come together to strengthen their relationships with others. Thanks in advance for your consideration.

Take Care,

Arthur "Art" Hansen, CRC

Wyoming Financial Insurance, Inc.
6101 North Yellowstone Rd. Suite 100
Cheyenne, WY 82009

ahansen@weracs.com

307-432-4140 (Main)
307-274-5678 (Cell)
307-634-9078 (Fax Line)



Wyoming Secretary of State
State Capitol Building, Room 110
200 West 24th Street
Cheyenne, WY 82002-0020
Ph. 307.777.7311
Fax 307.777.5339
Email: Business@wyo.gov

For Office Use Only

Limited Liability Company Articles of Organization

1. Name of the limited liability company:

Cheyenne Event Center at Pershing Plaza LLC

2. This entity elects to be a close limited liability company: ☒

3. Name and physical address of its registered agent:

(The registered agent may be an individual resident in Wyoming, a domestic or foreign entity authorized to transact business in Wyoming, having a business office identical with such registered office. The registered agent must have a physical address in Wyoming. A Post Office Box or Drop Box is not acceptable. If the registered office includes a suite number, it must be included in the registered office address.)

Name:

Arthur Ray Hansen

Address:

6101 Yellowstone Rd Cheyenne, WY, 82009 Suite 100

(If mail is received at a Post Office Box, please include in the above address.)

4. Mailing address of the limited liability company:

6101 Yellowstone Rd, Suite 100, Cheyenne, WY, 82009

5. Principal office address:

6101 Yellowstone Rd, Suite 100, Cheyenne WY 82009

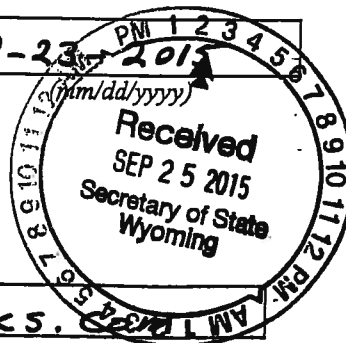
Signature:

Art Hansen

(Shall be executed by an organizer.)

Date:

9-23-2015



Print Name:

Arthur Ray Hansen

Contact Person:

Arthur Ray Hansen

Daytime Phone Number:

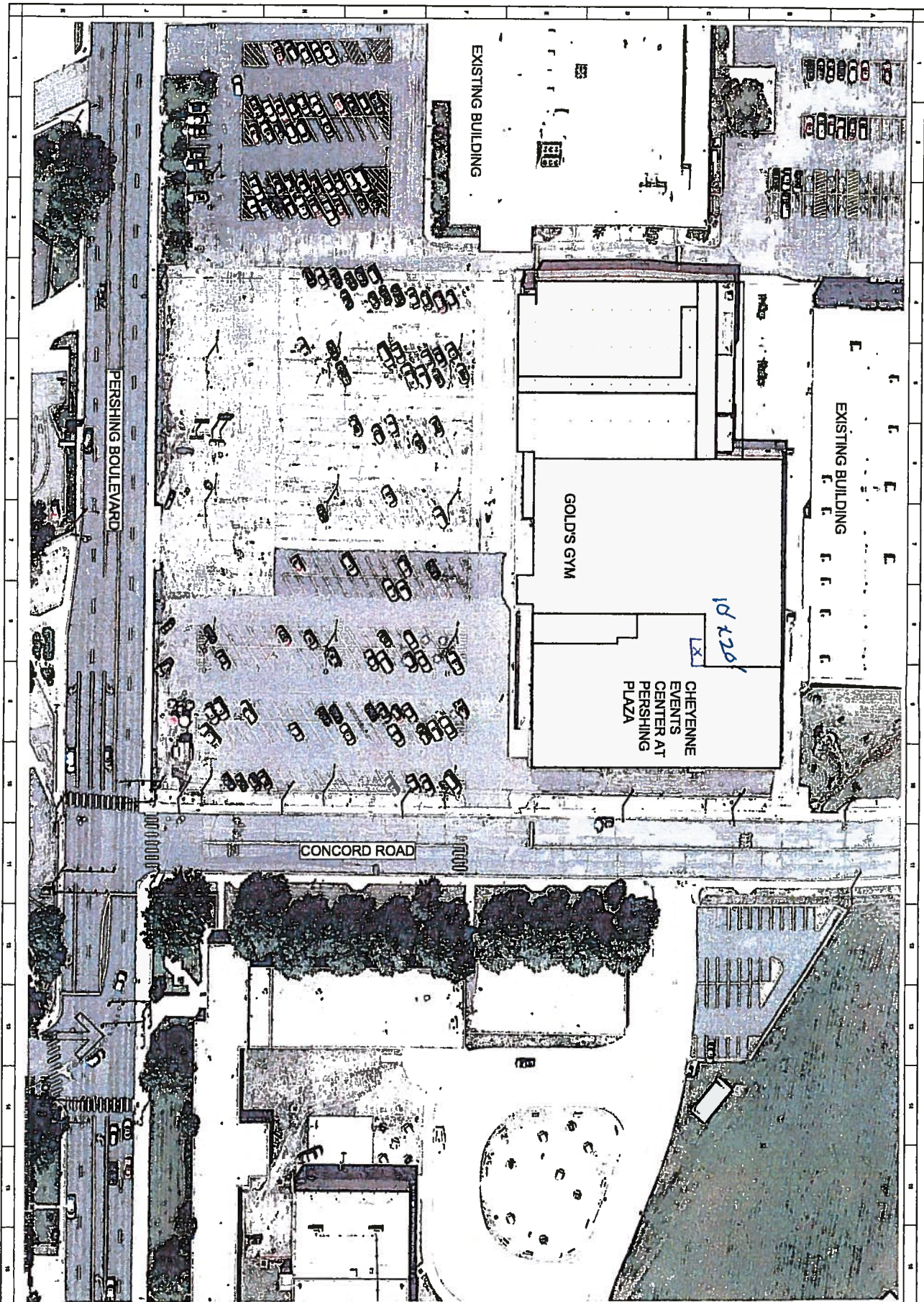
307-274-5678

Email:

Ahansen@wercs.com

(Email provided will receive annual report reminders and filing evidence)

**May list multiple email addresses*



A-141.1

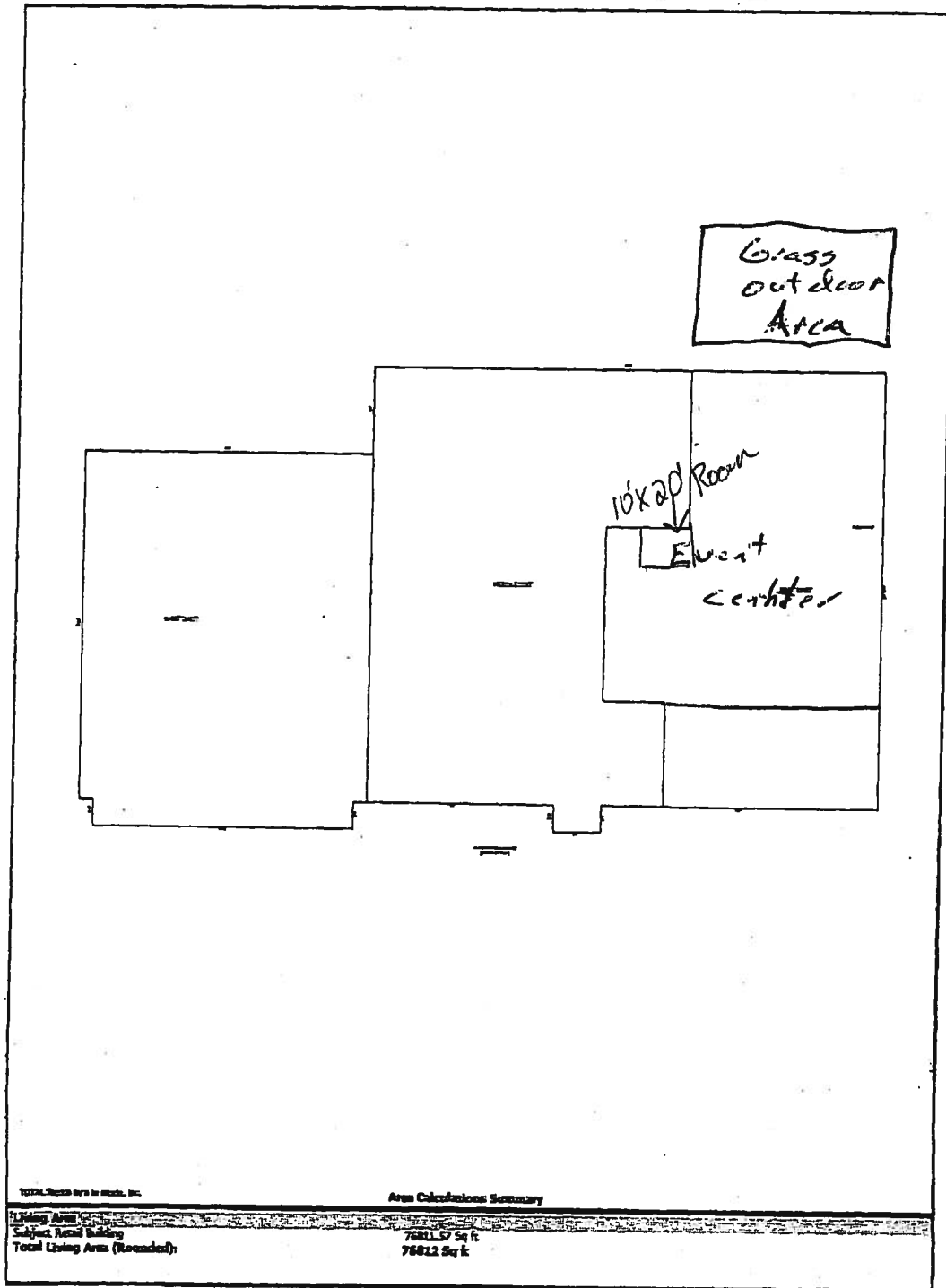
Scale
1" = 20' 0"

Wyoming Financial Properties
PERSHING PLAZA
CHEYENNE, WYOMING

TDSi The Design Studio, inc.
Architecture + Interior Design
1400 Thomas Avenue, Cheyenne, Wyoming 82001
T | 307.775.9970 W | tdsi.us

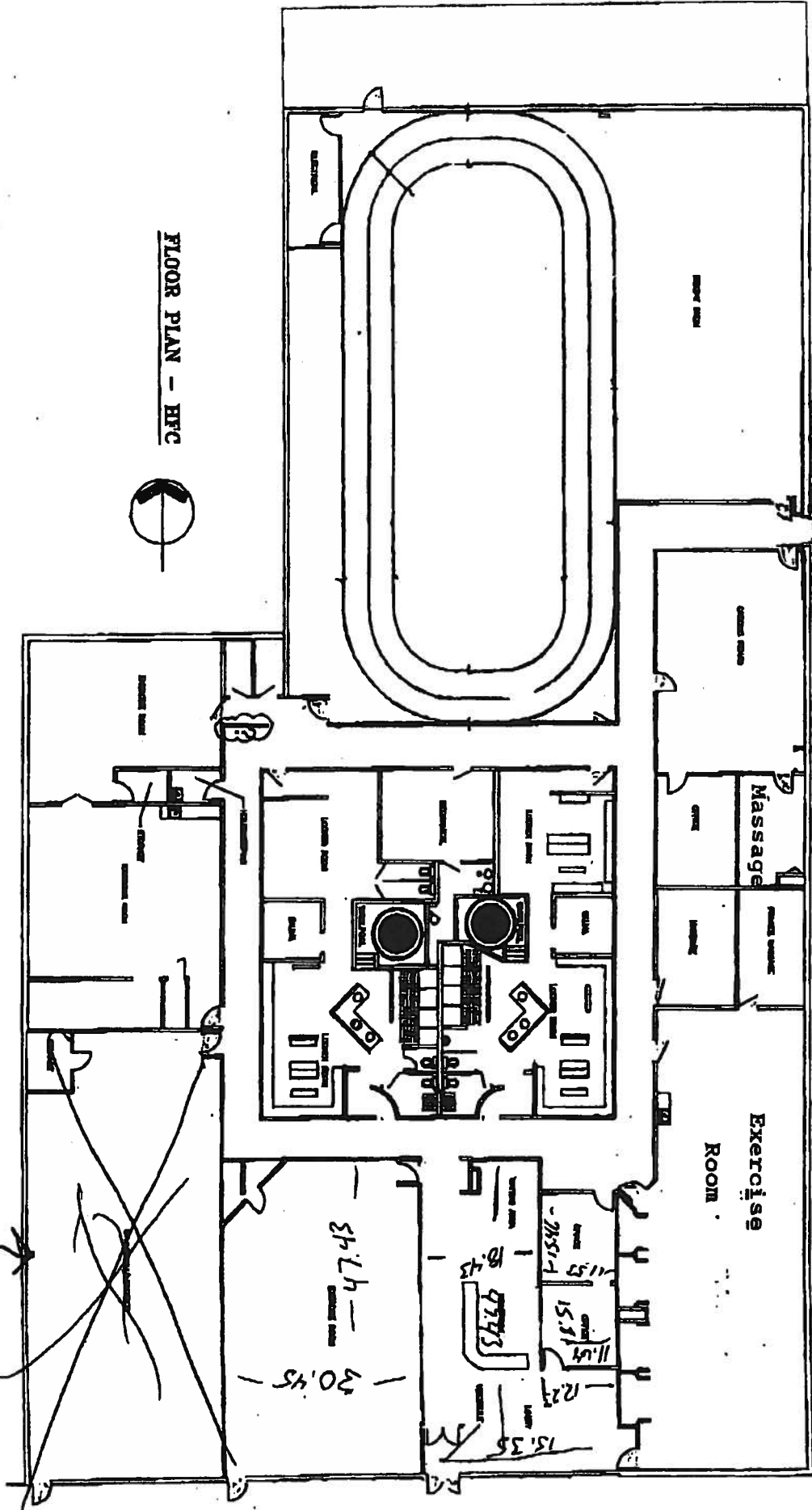
Improvements Floor Plan

Retail Building



3
2
5

FLOOR PLAN - HFC



SHOPPING CENTER LEASE

TABLE OF CONTENTS

REFERENCE PROVISIONS

ARTICLE

1 Leased Premises, Term and Use
2 Original Construction
3 Rental Commencement Date
4 Rental
5 Taxes
6 Subordination and Attornment
7 Additional Construction
8 Condition of Premises
9 Tenant's Repairs and Maintenance
10 Alterations
11 Fixtures and Personal Property
12 Liens
13 Laws and Ordinances
14 Environmental Services
15 Joint Use Areas
16 Damage to Premises
17 Insurance
18 Indemnification
19 Assignment, Subletting and
 Ownership
20 Access to Premises
21 Defaults by Tenant
22 Surrender of Premises
23 Tenant's Conduct of Business
24 Rules and Regulations
25 Eminent Domain
26 Attorneys' Fees
27 Sale of Premises by Landlord
28 Notices

ARTICLE

29 Remedies
30 Successors and Assigns
31 Representations
32 Waiver
33 Holding Over
34 Interpretation
35 Quiet Enjoyment
36 Waiver of Redemption
37 Fees
38 Tenant's Property
39 Lease Status
40 Recording
41 Force Majeure
42 Construction of Lease
43 Captions
44 Severability
45 Corporate Tenant
46 Entire Agreement
47 No Third-Party Rights
48 Financial Statements
49 Tenant's Failure
50 Ownership
51 Renewal Options
52 Franchisor Protective Provisions

EXHIBITS

EXHIBIT A	Plans of Leased Premises approved by Landlord
EXHIBIT B	Site Plan
EXHIBIT C	Description of Landlord/Tenant Work
EXHIBIT D	Additional Terms and Provisions
EXHIBIT E	Personal Guarantee
EXHIBIT F	Minimum Annual Rental Computation

SHOPPING CENTER LEASE

THIS LEASE is between WYOMING FINANCIAL PROPERTIES, INC., a Wyoming corporation ("Landlord"), and Cheyenne Events Center at Pershing Plaza LLC ("Tenant"). The date of this Lease ~~September 22~~ 2015. The Leased Premises are located in Pershing Plaza ("Shopping Center") in the City of Cheyenne, County of Laramie, and State of Wyoming.

REFERENCE PROVISIONS

The following references define terms used in the specified ARTICLES and elsewhere in this Lease and shall be construed in accordance with the provisions and conditions in this Lease:

1.01 Leased Premises: That portion of Shopping Center shown on Exhibit "A" and consisting of approximately 10,000 square feet of floor area.

[ARTICLE 1(a)]

1.02 Expiration Date: Fifteen years after the "Rental Commencement Date"

[ARTICLE 1(b)]

1.03 Permitted Use: Only for the operation of an events venue, catering including providing liquor, wine and malt beverages for events. Landlord specifically permits the Premises to be used for the sale and consumption of alcoholic beverages.

[ARTICLE 1(c)]

1.04 Minimum Annual Rental

Rental Commencement Date – (7/18/15) Upon completion of Tenant Improvements and issuance of a temporary or permanent certificate of occupancy.

[ARTICLE 4]

1.05 Address of Landlord:

Landlord's Notice Address

WYOMING FINANCIAL PROPERTIES, INC.
400 East 1st Street
Casper, Wyoming 82601

Landlord's Payment Address:

WYOMING FINANCIAL PROPERTIES, INC.
400 East 1st Street
Casper, Wyoming 82601

[ARTICLE 4 and 28]

1.06 Address of Tenant:

Cheyenne Events Center at Pershing Plaza LLC
1620 Pershing Boulevard
Cheyenne, Wyoming

[ARTICLE 28]

1.07 Renewal Options- Two (2) Five (5) year options upon twelve months prior written notice of exercise of the option.

ARTICLE 1- Leased Premises, Term and Use

(a) Landlord leases to Tenant and Tenant takes from Landlord in consideration of the covenants and agreements in this Lease, the premises ("Leased Premises") being that portion of the building measured from the west wall of the building at 1600 East Pershing Boulevard, Cheyenne of common walls and the outside faces of exterior walls, on the drawings attached to this Lease and made a part of this Lease as "EXHIBIT A ". The Leased Premises shall include corridors and passageways for the exclusive use of the Leased Premises, columns, stairs, and any construction or equipment located in the Leased Premises, as well as pipes, conduits, electrical wires and drainage lines that directly serve the Leased Premises. The Leased Premises are shown on the drawing attached and made a part of this Lease as "EXHIBIT B," and includes all buildings, land, improvements, additions, extensions and deletions which may be made from time to time. The Leased Premises are described further in the Reference Provisions. If the square footage of the Leased Premises is different than the amount set forth in Reference Provision 1.01, all rental and additional rental and amounts based upon the square footage of the Leased Premises shall be proportionately adjusted, and the parties shall execute an amendment to this Lease memorializing the adjustments.

EXHIBITS A and B are for informational purposes only, and are not a warranty, representation or agreement that the Leased Premises or other areas will be as shown on the Exhibits, or that other occupants if shown on the Exhibits will be in the Shopping Center. Tenant's rights are limited to the use and occupancy of the Leased Premises and the license to use the Joint Use Areas as they may exist from time to time, all subject to the terms, covenants, conditions and provisions of this Lease.

(b) The term of this Lease ("Term") shall begin on TBD (the "Commencement Date") and end on the Expiration Date in the Reference Provisions.

(c) The Leased Premises shall be used and occupied only for the Permitted Use in the Reference Provisions, an event venue, and catering including sale of liquor, wine and malt beverages for events and for no other use or purpose whatsoever. Tenant agrees to use the Leased Premises for the operation and for no other purpose, without the prior written consent of the Landlord, which shall not be unreasonably withheld.

ARTICLE 2 – Not Used

ARTICLE 3 - Rental Commencement Date

The rental payments shall begin to accrue on the following date after the date that a temporary or permanent certificate of occupancy is granted for the Premises.

ARTICLE 4 – Rental and Security Deposit

Tenant shall pay Landlord as rental for the use and occupancy of the Leased Premises, at the times and in the manner provided, the following sums of money per annum without deduction or set-off and without prior demand: As shown in the Reference Provisions, Section 1.04.

The Minimum Annual Rental amount has been computed based on estimates of work to be performed on the Pershing Plaza building and site and on Tenant improvements work to be performed. The Minimum Annual Rental will be adjusted based on actual amounts invoiced for the completed work; the rental adjustment will be documented with an Addendum to the Lease. See EXHIBIT F for details of the current computation.

ANNUAL RENTAL: The Annual Rental shall be payable in 12 equal monthly installments in advance, upon the 1st day of each and every month during the periods of time specified in the Reference Provisions. The Annual Rental shall increase by five percent (5%) at the beginning of the 6th year and an additional five percent (5%) at the beginning of the 11th year of the Lease and at the beginning of each renewal option if the lease is renewed.

SECURITY DEPOSIT: None.

ARTICLE 5 - Taxes

(a) Effective upon the Rental Commencement Date, Tenant shall pay its proportionate share of all real property taxes and assessments, without deduction or set-off of any kind, including the cost of any contest, review or negotiation of an assessment by Landlord, as described in (c) below, which may be levied or assessed against the Shopping Center during the Term by any lawful authority for each calendar year. Tenant, at its option, may petition the Laramie County Assessor to assess the Leased Premises separately from the balance of the Shopping Center and to present a separate tax bill for the Leased Premises. If Tenant elects to pay its share of real property taxes based on this separate tax bill, then Tenant shall submit to Landlord equal monthly payments, in advance, such that the full amount of real property taxes has been received by the Landlord at least 10 days prior to the due date of said real property taxes. Landlord agrees to hold all funds separately and to pay the Laramie County Treasurer on or prior to the due date.

(b) Tenant's share shall be paid in monthly installments on or before the 1st day of each calendar month, in advance, in an amount estimated by Landlord. If Landlord is required however under a mortgage to escrow real estate taxes, Landlord may, but shall not be obligated to, use the amount required to be escrowed as a basis for the estimate of the monthly installments. Upon confirmation of all tax and assessment bills attributed to any calendar year during the Term, Landlord shall furnish Tenant with a written statement of the actual amount of Tenant's proportionate share of the real property taxes and assessments for that year. If the total amount paid by Tenant for any calendar year during the Term is less than the actual amount due from Tenant for that year, as shown on the statement, Tenant shall pay Landlord the deficiency within 30 days after demand by Landlord. If the total amount paid by Tenant for any calendar year exceeds the amount due from Tenant for that calendar year, Landlord shall credit the excess against payments due. Tenant's liability for its proportionate share of real property taxes and assessments for the calendar years in which this Lease begins and ends shall be subject to a prorata adjustment based on the number of days in those years. Before the beginning of the Term, and from time to time, Landlord shall notify Tenant in writing of Landlord's estimate of Tenant's monthly installments due. Landlord's and Tenant's obligations under this ARTICLE 5 shall survive the expiration of the Term. An official tax bill (or copy), if available, shall be submitted by Landlord to Tenant, upon request by Tenant, and shall be conclusive evidence of the amount of the tax assessed or levied, the items taxed and the installments.

(c) If Tenant pays an amount in excess of its proportionate share of real property taxes and assessments for any year as the result of a subsequent reduction in total real property taxes and assessments for that year, the excess shall be refunded to Tenant (the "Refund") when all refunds to which Landlord is entitled from the taxing authority for that year are received by Landlord.

ARTICLE 6 - Subordination and Attornment

(a) Tenant's rights shall be subordinate to the lien of any mortgage or deed of trust in force or later placed against the Shopping Center, upon any building placed later upon the Shopping Center and-to-all- advances made upon the security thereof. No mortgagee or beneficiary named in the mortgage or trust deed shall disturb Tenant's peaceable possession of the Leased Premises if Tenant is not in default under this Lease. Any mortgagee or beneficiary of Landlord may, at its option, subordinate its mortgage or trust deed to this Lease. This ARTICLE 6(a) is self-operative, and no further documentation of Tenant's subordination and attornment is required; however, Tenant shall execute any subordination agreement requested by Landlord, any mortgagor or beneficiary of Landlord upon written request. Tenant shall accept performance of any of Landlord's obligations hereunder by any mortgagee or beneficiary of Landlord.

(b) If any proceedings are brought for foreclosure, or if the power of sale under any mortgage, deed of trust or deed to secure debt made by Landlord covering the Leased Premises is exercised, Tenant shall attorn to the purchaser upon the foreclosure or sale and recognize the purchaser as the Landlord under this Lease.

(c) Tenant agrees to make such reasonable modifications to this Lease as may be reasonably required in connection with the obtaining of financing or refinancing of the Shopping Center or any portion thereof or interest therein, so long as such modifications do not change the economic terms hereof or materially affect Tenant's rights, increase Tenant's obligations, or reduce Landlord's obligations hereunder.

ARTICLE 7 - Additional Construction and Tenant Improvement Allowance

Landlord grants to Tenant a Tenant Improvement allowance of \$50.00 per square foot, for a total of \$500,000.00 (the "Allowance") for the costs relating to the initial design and construction of certain improvements which are to be a part of the Leased Premises and which are Tenant's responsibility (the "Tenant's Improvements"). The Allowance shall be applied to all elements of the cost of construction of the initial Tenant's Improvements that are completed before Tenant opens for business, such as architectural, design and engineering costs, labor, materials, construction-related utility charges and other construction costs (collectively, "Construction Costs"). The Allowance shall not be applied to the purchase, lease, or finance of any furniture, trade fixtures, inventory or other moveable personal property. Landlord makes no representation or warranty, express or implied, by the Lease or otherwise that the Allowance will be sufficient to complete construction of the Tenant's Improvements. The Allowance shall be disbursed monthly upon submittal of invoices for work completed, so long as Tenant is not then in default of the Lease. All invoices for construction costs presented by Tenant to Landlord shall constitute a representation on the part of Tenant that the funds referred to therein have been used solely for paying only the construction costs of the Tenant's Improvements.

A description of the Tenant's Improvement is attached as Exhibit C.

ARTICLE 8 - Condition of Premises **Landlord's Work**

Landlord shall tender possession of the Leased Premises to Tenant improved with certain improvements (the "Landlord's Work"), constructed by Landlord at its cost. No costs of Landlord's Work shall be charged against the \$50 per square foot Allowance. Landlord shall be responsible, at its sole expense, for the maintenance and upkeep of these items throughout the term of this Lease, and Landlord shall keep each item of Landlord's Work in good repair. Each item of Landlord's Work shall be subject to review and approval by Tenant in Tenant's reasonable discretion. Landlord's Work includes the following:

- (a) Landlord shall install a new roof covering the Leased Premises, in accordance with industry standards and with building standard materials and construction procedures.
- (b) Landlord shall place HVAC equipment on the roof capable of maintaining reasonable temperature for use of the Premises as determined by ASHRE Standards and Guidelines. HVAC shall be set in place with all curbs and piping as required by code, and with full distribution and hook up to the Leased Premises.
- (c) Landlord shall provide electrical power service of at least 600 amps to the Leased Premises.

In addition to the above specific items, Landlord's Work shall include any and all work required to ensure that the Leased Premises are compliant with the Americans with Disabilities Act. Landlord hereby represents and warrants that, at the time of delivery of the Leased Premises, the Leased Premises, as constructed and delivered by Landlord, shall be compliant with the Americans with Disabilities Act.

Except as provided above, Tenant take possession of the Leased Premises in their "as is" condition.

ARTICLE 9 - Repairs and Maintenance

Landlord shall be responsible for all structural repairs to the Leased Premises including exterior walls, roof, and any pipes, ducts and wires that run through the Leased Premises which do not exclusively serve the Leased Premises. Landlord shall be responsible for all repairs necessitated due to earth movement and flood waters, whether surface or underground. Landlord shall not be responsible for damage or personal injury caused by any defects or other conditions, or the consequences thereof, except in the case of Landlord's willful misconduct or by the misconduct of Landlord's employees, agents or contractors. Landlord shall not be liable to Tenant for any damage to merchandise, trade fixtures or personal property of Tenant in the Leased Premises, including without limitation damage by water discharge from a sprinkler system or water damage caused by leakage from other occupants. Beginning on the Rental Commencement Date, Tenant shall be liable for the repairs, replacements and maintenance of the Leased Premises, except those for which Landlord is responsible under this ARTICLE 9. Tenant shall keep the Leased Premises in good order and repair, clean, sanitary and safe and shall notify Landlord, in writing, prior to beginning any repair which exceeds \$10,000. The notice shall specify the repair work to be performed. This notice may be waived for those repairs of an emergency nature. Tenant's repairs and maintenance obligations shall include, but not be limited to, its heating and cooling equipment; other equipment; fixtures; improvements; floor covering; the exterior and interior portions of all doors, door locks, security gates, and windows; electric, gas, fire sprinklers, plumbing and sewage facilities which are within the Leased Premises; interior walls; ceilings; and plate glass. Tenant shall be solely responsible for maintenance and repair costs related within the Leased Premises, other than any exceptions specifically mentioned above. Tenant agrees to keep the interior of the Leased Premises in a clean and sightly appearance. If Tenant refuses or neglects to make repairs or maintain the Leased Premises, in a manner reasonably satisfactory to Landlord, Landlord shall have the right, upon giving Tenant reasonable written notice, to make the repairs or perform the maintenance on behalf of Tenant. Tenant shall reimburse Landlord within 30 days upon receipt of a bill. Landlord has no obligation to do work which Landlord is not expressly required to perform under this Lease or which, under this Lease, Tenant is required to perform. The performance of that work by Landlord shall not constitute a waiver of Tenant's default.

ARTICLE 10 - Alterations

Tenant shall not make any structural, electrical, storefront, exterior, major interior or mechanical alterations to the Leased Premises without obtaining the written consent of Landlord, which permission shall not be unreasonably

withheld, conditioned, or delayed. Tenant has the right to make non-structural alterations, additions, or improvements to the premises that do not exceed \$20,000 or do not require a Building Permit. Tenant shall not interfere with any work in the Shopping Center, and shall not cause the closing, interruption or impairment of Tenant's normal conduct of business. All alterations, additions, improvements and Tenant's Work shall become, upon expiration of the Term, or the earlier termination of this Lease, the property of Landlord without any payment by Landlord. All such work by Tenant shall be made under the supervision of a competent architect or competent licensed structural engineer and shall be in accordance with plans and specifications approved in writing by Landlord before the start of the work, such approval by Landlord not to be unreasonably withheld, conditioned, or delayed. In the event that Landlord does not respond to any written request by Tenant for consent or approval within ten (10) days of Landlord's receipt of such request, Landlord's consent or approval, as applicable, shall be deemed granted. Landlord's approval of Tenant's plans and specifications shall not create a responsibility or liability of Landlord for their accuracy, sufficiency or compliance with laws or rules and regulations. The work shall be in accordance with necessary governmental approvals and permits. Tenant shall obtain approvals and permits at its sole expense. The work shall be done in a good and workmanlike manner and diligently prosecuted to completion. The Leased Premises shall at all times be a complete unit except during the performance of work. Work one by Tenant without Landlord's consent shall be returned to its original condition, at Tenant's expense, upon request by Landlord.

ARTICLE 11 - Fixtures and Personal Property

Trade fixtures, signs and other personal property of Tenant not permanently affixed to the Leased Premises shall remain the property of Tenant. Tenant shall have the right, provided Tenant is not in default, to remove its trade fixtures, signs and other personal property. Tenant, at its expense, shall immediately repair damage to the Leased Premises caused by the removal of such trade fixtures, signs and other personal property. Upon the expiration or earlier termination of this Lease, Tenant shall leave the Leased Premises in a neat and clean condition, free of debris. Tenant shall pay before delinquency all taxes, assessments, license fees and public charges levied, assessed or imposed upon its business operation in the Leased Premises as well as upon its trade fixtures, leasehold improvements (including but not limited to merchandise and other personal property in, on or upon the Leased Premises). No taxes, assessments, fees or charges referred to in this ARTICLE 11 shall be considered taxes under ARTICLE 5. Upon the reasonable request of Tenant, Landlord shall execute a landlord consent and waiver of lien if required by any lender or equipment lessor that finances Tenant's equipment, trade fixtures, or inventory, such consent and waiver to be in form reasonably satisfactory to such lender or equipment lessor.

ARTICLE 12 - Liens

Tenant shall not permit a lien or claim to attach to the Leased Premises and shall promptly cause the lien or claim to be released. If Tenant contests the lien or claim, Tenant shall indemnify Landlord and, if requested, deposit with Landlord a cash or surety bond in a form and with a company satisfactory to Landlord in an amount equal to the amount of the contested lien or claim. If Tenant shall fail to cause a lien to be discharged or bonded, within 20 days after being notified of the filing of the lien, in addition to any other right or remedy, Landlord may discharge the lien by paying the amount claimed to be due. The amount paid by Landlord, together with interest at the Interest Rate and all costs and expenses, including reasonable attorneys' fees incurred by Landlord, shall be due and payable by Tenant to Landlord as additional rental on the 1st day of the next following month. Tenant shall immediately give Landlord written notice of the recording of a lien against the Leased Premises or the Shopping Center arising out of work done by or at the direction of Tenant.

ARTICLE 13 - Laws and Ordinances

(a) Tenant shall comply with all laws, ordinances, codes, orders and regulations affecting the construction, use, occupancy, alteration, cleanliness, safety and operation of the Leased Premises, which are in force now or later. Tenant shall comply with the regulations, requirements and recommendations of any insurance underwriter,

inspection bureau or similar agency. Tenant shall notify Landlord if Tenant has received notice of or has knowledge of any condition or occurrence that might result in liability to Landlord. Tenant shall give Landlord, upon Landlord's request, information regarding the environmental condition of the Leased Premises so Landlord can determine if Landlord must comply with any rule, regulation, order, act, law or statute pertaining to the environmental condition of the Leased Premises or the Shopping Center, and for Landlord to accurately complete a form or otherwise provide information required under any rule, regulation, order, act, law or statute. Tenant shall permit Landlord to comply with those recommendations and requirements.

(b) Tenant shall not: (i) permit an immoral practice in the Leased Premises; (ii) use or allow the Leased Premises to be used or occupied in a manner that might invalidate or increase the rate of or make inoperative an insurance policy carried on the Leased Premises or on property, buildings or improvements in the Shopping Center; (iii) keep, use or permit in the Leased Premises explosives or inflammable fluids (except in small quantities that may be required in Tenant's normal operations) without the prior written permission of Landlord, or engage in hazardous activities; (iv) use the Leased Premises for a purpose which might create a nuisance or injure the reputation of the Leased Premises or the Shopping Center; (v) deface or injure the Leased Premises or any portion of the Shopping Center; (vi) overload the floors; (vii) commit or suffer waste; (viii) install electrical equipment that overloads lines; or (ix) conduct any sampling, testing, or drilling to locate any Hazardous Material without Landlord's prior written approval. Tenant shall, at Tenant's expense, make from time to time whatever changes are necessary to comply with the requirements of the insurance inspectors, underwriters and governmental authorities in connection with electrical and fire prevention systems and equipment.

(c) Tenant shall not cause or permit any Hazardous Material (defined below) to be brought upon, transported through, stored, kept, used, discharged or disposed in or about the Leased Premises or the Shopping Center (collectively "Property") by Tenant, its agents, employees or contractors. Tenant shall notify Landlord immediately of the presence of or disposal of Hazardous Material on or near the Leased Premises, and of any notice by a party alleging the presence of Hazardous Material on or near the Leased Premises. However, Hazardous Materials brought upon, transported, used, kept or stored in or about the Property which are necessary for Tenant to operate its business for the use permitted under Reference Provision 1.03 of this Lease shall be brought upon, transported, used, kept and stored only in the quantities necessary for the usual and customary operation of Tenant's business and in a manner that complies with: (i) all laws, rules, regulations, ordinances, codes or any other governmental restriction or requirement of all federal, state and local governmental authorities having jurisdiction and regulating the Hazardous Material; (ii) permits (which Tenant shall obtain prior to bringing the Hazardous Material in, on or about the Property) issued for the Hazardous Material; and (iii) all producers' and manufacturers' instructions and recommendations, to the extent they are stricter than laws, rules, regulations, ordinances, codes or permits. If Tenant, its agents, employees or contractors, in any way breaches the obligations in the preceding sentence; or if the presence of Hazardous Material on the Property caused or permitted by Tenant results in the release or threatened release of Hazardous Material on, from or under the Property; or if the presence on, from or under the Property of Hazardous Material otherwise arises out of the operation of Tenant's business then, without limitation of any other rights or remedies available to Landlord under this Lease or at law or in equity, Tenant shall be responsible for any clean up, removal, disposal, remediation or other actions required to restore the Property to its prior condition and Tenant shall pay all costs and expenses thereof.

(d) Landlord agrees that Tenant's normal use as set forth in ARTICLE 1 will not violate the provisions of ARTICLE 13.

(e) Hazardous materials shall be any gas, liquid or solid substance defined by any federal, state or local statutes, rules and regulations to be Hazardous Materials, regulated materials or materials that have the potential to cause damage to health, safety or the environment generally.

ARTICLE 14 - Environmental Services

(d) Tenant shall pay for all utilities used in the Leased Premises during the Term. Tenant shall, if required by Landlord or applicable code, provide and pay for its own meters for heat, air conditioning, water, gas, electricity and

all other utilities, such meters to be paid from the tenant improvement allowance, and Tenant shall pay all water and sewage charges (and all other charges for utilities used in the Leased Premises), rentals and taxes imposed by governmental authority or otherwise.

(e) Heating, ventilation and air conditioning for the Leased Premises will be in accordance with the exhibits.

(f) Tenant, at Tenant's expense, shall maintain the heating, ventilation and air conditioning equipment which exclusively serve or are within the Leased Premises.

(g) Landlord shall keep in good order and repair and shall maintain the telephone raceway and interface wiring system and shall make any necessary repairs to or replacements of such telephone raceway and/or interface wiring system (except that Landlord's obligation shall not include repair or replacement of service extensions, wiring or other telephone systems exclusively servicing the Leased Premises and that Tenant shall reimburse Landlord for any and all repairs thereto necessitated by any acts, omissions to act or negligence of Tenant or Tenant's agents, employees and contractors).

(h) Tenant agrees that garbage and refuse shall be kept in an adequate container so as not to be visible to the public, within the Leased Premises, for collection at reasonable times specified by Landlord and at Tenant's cost.

(i) During the Term, Tenant shall keep in good order and repair and shall maintain the fire sprinkler system in the Leased Premises, including checking, testing and servicing thereof, and shall make any necessary repairs to or replacements of such sprinkler system. Tenant, shall be financially responsible for all repairs and replacements thereto necessitated by any acts, omissions to act or negligence of Tenant or Tenant's agents, employees and contractors.

ARTICLE 15 - Joint Use Areas

(a) The "Joint Use Areas" shall consist of all parking areas, parking facilities, approaches, streets, sidewalks, malls, driveways, loading platforms, canopies, elevators, escalators, ramps, storm drainage facilities, exits, entrances, sprinkler mains, landscaped areas, comfort stations, light facilities, computer facilities, cable facilities, telecommunications facilities or equipment including but not limited to HVAC equipment servicing the premises, washrooms, lounges and shelters, utility lines, roofs, roadways and other facilities available for joint use or benefit designated by Landlord, as they may from time to time exist and be available to the tenants in the Shopping Center, their employees, officers, agents, customers, licensees and invitees. The Joint Use Areas are those which lie on the Shopping Center, whose west boundary is defined by a north/south line running along the east wall of the former Montgomery Wards store. Additionally, Tenant's customers shall be permitted to use the parking facilities, approaches and exits located adjacent to the former Montgomery Wards store, but those facilities are not included as part of the "Joint Use Areas."

(b) Landlord shall, subject to events beyond its reasonable control, maintain or cause to be maintained the Joint Use Areas in good order and repair. The Joint Use Areas and other facilities in and about the Shopping Center shall at all times be subject to the control and management of Landlord and other parties that Landlord may designate. Landlord shall have the right at any time to redesignate, modify, alter, close, restrict, expand, reduce and change the Joint Use Areas. Landlord shall also have the right to permit entertainment events, the placement of kiosks, carts, advertising and other displays in the Joint Use Areas, and to convert the Joint Use Areas into retail areas. The activities and uses may be temporary or permanent. Notwithstanding anything to the contrary herein, Landlord shall, at all times during this Lease, furnish, as appurtenances to the Leased Premises, (i) the non-exclusive use of day, night, and late night parking areas in a quantity sufficient for Tenant's customers, which areas shall be reasonably close to Tenant's entrance, and which areas shall not be declared by Landlord to be employee parking areas in this lease or any other lease, such parking areas to be lighted during Tenant's hours of

operation after dusk, (ii) unrestricted access to Tenant's entry and exit doors from the Leased Premises, such that said entry and exit ways shall always be in compliance with all existing and future Building, Fire and Life Safety Codes, and (iii) access to high-speed data transmission services, whether via satellite reception, fiber optic, or any other existing or future technology.

(c) "Joint Use Area Costs" means the total of all expenditures relating to operating, managing, equipping, policing, protecting, lighting, repairing, cleaning, replacing and maintaining the Joint Use Areas in the same or improved condition as when originally installed, including any rental and lease payments paid for machinery and equipment used in the maintenance of the Joint Use Areas and the personnel costs to implement those services. (However, if the machinery and equipment is purchased, depreciation as well as interest at the Interest Rate, shall be a Joint Use Area Cost). The costs and expenses shall include but not be limited to: the costs of compliance with statutes, laws, codes, rules and regulations, even if applicable after the Commencement Date; assessments and charges for maintaining parking spaces for employees, customers and other parties; removal of snow, ice, rubbish, dirt and debris; planting, replanting and replacing flowers and landscaping; costs and expenses of utilities including, but not limited to, maintaining parking lot and plaza lighting; premiums for liability, property, damage, and fire insurance. Tenant's share of Joint Use Area Costs shall be proportionate to its square footage as a percentage of the Total Square Footage of the buildings located in Shopping Center, whether leased or not. The Total Square Footage may be increased by future construction, but may not be reduced if any existing building is demolished. Landlord shall submit invoices for Joint Use Area Costs to Tenant at least annually, but no more often than monthly. Tenant's payment of Joint Use Area Costs shall be made within 30 days after receipt of Landlord's invoice.

ARTICLE 16 - Damage to Premises

If the Premises are damaged by any casualty, the damage (exclusive of any property of Tenant or improvements installed by Tenant and located therein) shall be repaired by and at the expense of Landlord, provided such repairs can, in Landlord's opinion, be made within ninety (90) days after notice to Landlord of the occurrence of such damage without the payment of overtime or other premiums. Until such repairs are completed, the rent shall be abated in proportion to the part of the Premises which is unusable by Tenant in the conduct of its business; provided, however, that no rent shall be abated by reason of any portion of the Premises being unusable for a period of five (5) days or less.

If such repairs cannot, in Landlord's opinion, be made within such ninety (90) day period, Landlord may, at its option, make them within a reasonable time, and in such event this Lease shall continue in effect and the rent shall be abated in the manner and to the extent provided above. Landlord's election to make such repairs must be evidenced by written notice to Tenant within thirty (30) days after notice to Landlord of the occurrence of the damage advising Tenant whether or not Landlord will make such repairs and the estimated time for completing the same. If Landlord does not so elect to make such repairs, which cannot be made within such ninety (90) day period, then either party may by written notice to the other, cancel this Lease effective as of the date of such notice.

In case of any damage which Landlord is required or undertakes to repair as provided herein, Tenant may terminate this Lease by notice to Landlord at any time prior to completion of the required repairs if Landlord has not restored and rebuilt the Premises (exclusive of any property of Tenant or improvements installed by Tenant located therein) to substantially the same condition as existed immediately prior to such damage, plus such additional period thereafter as shall equal the aggregate period Landlord may have been delayed in doing so by acts of God, adjustment of insurance, labor trouble, governmental controls, unavailability of materials, or any other cause beyond Landlord's reasonable control.

No damage, compensation or claim shall be payable by Landlord for inconvenience, loss of business or annoyance arising from any repair or restoration of any portion of the Premises or other portion of the Building, and Landlord shall use its best efforts to effect such repair or restoration promptly and in such manner as to not unreasonably interfere with Tenant's use and occupancy of the Premises.

Landlord shall not be required to carry insurance of any kind on Tenant's property and except by reason of the breach by Landlord of any its obligations hereunder, shall not be obligated to repair any damage thereto or replace the same.

A total destruction of the Building shall automatically terminate this Lease.

ARTICLE 17 - Insurance

(a) Landlord agrees to carry, or cause to be carried, the following insurance coverages and types:

(i.) Workers' Compensation Insurance in statutory amounts;

(ii.) Commercial General Liability Insurance on the Joint Use Areas providing coverage of not less than \$1,000,000 per occurrence, with a \$2,000,000 aggregate/

(iii.) Commercial Property Insurance including special form perils endorsement insuring Landlord's property in the Shopping Center for the full replacement value. This insurance will exclude Tenant's Work and Tenant's merchandise, signs, goods, trade fixtures, furnishings, equipment, furniture and other personal property.

(iv.) Landlord will have the right to carry or cause to be carried additional types of insurance in whatever limits Landlord chooses, including coverage under blanket insurance policies which may be allocated by Landlord among the properties owned or managed by Landlord which in Landlord's opinion Landlord deems appropriate.

(b) Tenant agrees to carry the following insurance coverages and types:

(i.) Workers' Compensation Insurance in statutory amounts;

(ii.) Commercial General Liability Insurance including products and completed operation coverages of not less than \$1,000,000 per occurrences, with a \$2,000,000 per location aggregate. The fire legal liability limit shall be not less than \$1,000,000. This policy shall also include an Additional Insured Endorsement containing the names of the Additional Insureds identified below. The policy must have a Waiver of Subrogation endorsement in favor of all Additional Insureds. Any deductible/self-insured retention in excess of \$25,000 per occurrence requires Landlord's written consent.

(iii.) Loss of Business Income Insurance, including Extra Expense and Contingent Business income coverage. The insurance limits for this insurance shall be based upon a minimum of 12 months business income with a 60-day extended period of indemnity endorsement.

(c) All policies of insurance (including policies of Tenant's contractors and subcontractors) shall contain a Waiver of Subrogation Endorsement in favor of all Additional Insureds. This waiver of subrogation expressly includes any cause of loss due to the sole or concurrent negligence of any Additional Insured. If Tenant shall, for any reason, fail to obtain from its insurance carrier(s) the required Waiver of Subrogation Endorsement, the Tenant shall fully and completely defend and indemnify the Landlord and all Additional Insureds from any claims and demands, including lawsuits, brought against Landlord and/or the Additional Insureds by any insurance company which insured Tenant for a paid loss and which seeks to recover amounts paid under Tenant's policy.

(d) Tenant shall provide a Certificate of Insurance to Landlord evidencing all of the required coverages and Endorsements prior to taking possession of the Premises. The Certificate of Insurance must remain current (or be

replaced with a current Certificate) at all times during the period of Tenant's tenancy. All policies of insurance must be written by insurance carriers licensed to do business in the State of Wyoming and have an A.M. Best's rating of not less than A:VII. All Tenant's liability policies shall be endorsed to be primary and non-contributory to policies of the Landlord and the Additional Insureds, and shall contain either a cross-liability endorsement or separation of insureds provision which permits the limits of liability under Tenant's policies to apply separately to each Additional Insured. Each policy shall contain a provision that the insurance company shall give all Additional Insureds 30 days' written notice in advance of any cancellation, lapse, reduction in amount of coverage or any other adverse change to the policy or insurer.

(e) The Additional Insureds who shall be named on Tenant's policies shall include the Landlord, (and if Landlord elects, its parent, subsidiaries, and affiliates), any owner or occupant in or adjoining the Shopping Center (including anchor tenants), any joint venturer or partner of Landlord, and any mortgagee or beneficiary of any part of the Shopping Center.

ARTICLE 18 - Indemnification

Excluding the willful misconduct of the indemnitee, Tenant shall indemnify, defend and save harmless Landlord, its parents, partners, subsidiaries, affiliates, owner or operator which is or may be in the Shopping Center, their agents, officers and employees from and against liability, claims, demands, expenses, fees, fines, penalties, suits, proceedings, actions, and causes of action arising out of or connected with Tenant's use, occupancy, management or control of the Leased Premises or Tenant's operations or activities in the Shopping Center (whether or not occurring or resulting in damage or injury within the Leased Premises or the Joint Use Areas). Likewise, Landlord shall indemnify, defend and save harmless Tenant, its parents, partners, subsidiaries, affiliates, owner or operator which is or may be in the Shopping Center, their agents, officers and employees from and against liability, claims, demands, expenses, fees, fines, penalties, suits, proceedings, actions, and causes of action arising out of or connected with Landlord's use, occupancy, management or control of the Leased Premises or Landlord's operations or activities in the Shopping Center (whether or not occurring or resulting in damage or injury within the Leased Premises or the Joint Use Areas). This obligation to indemnify shall include reasonable legal and investigation costs and all other reasonable costs, expense and liabilities from the 1st notice that any claim or demand is or may be made. Tenant's and Landlord's obligation shall become effective beginning on the date Tenant is delivered the Leased Premises. Tenant's and Landlord's indemnification obligation shall survive the expiration of the Term or the earlier termination of this Lease.

ARTICLE 19 - Assignment, Subletting and Ownership

Tenant acknowledges that its agreement to operate in the Leased Premises for the use permitted in the Reference Provisions for the Term was a primary inducement and precondition to Landlord's agreement to lease the Leased Premises to Tenant. Accordingly, Tenant shall not transfer, assign, sublet, change ownership or hypothecate this Lease or Tenant's interest in and to the Leased Premises in whole or in part, or otherwise permit occupancy of all or any part of the Leased Premises by anyone with, through or under it without the consent of Landlord, except that the above requirements in this Article 19 shall not apply, and Tenant shall have the right without consent of Landlord to make any transfer, assignment, sublease, change of ownership, hypothecation, or change of occupancy to any entity affiliated with Tenant that is more than fifty percent (50%) owned and controlled by Tenant. Landlord agrees not to unreasonably withhold its consent to a transfer of this Lease or a subletting of the Leased Premises by Tenant so long as the proposed assignee or sublessee has sufficient capital and operating experience to operate the Premises in a manner reasonably comparable to Tenant. Acceptance of assignment by Landlord shall release and discharge Tenant from all obligations of this Agreement.

ARTICLE 20 - Access to Premises

Tenant agrees that Landlord, its agents, employees, servants or any person authorized by Landlord, may upon reasonable prior notice (other than in emergency situations), enter the Leased Premises to: (a) inspect its condition; (b) make repairs, additions or improvements to any part of the Shopping Center, including the Leased Premises; (c) exhibit the Leased Premises to prospective purchasers of the Shopping Center; (d) place notices during the last 60 days of the Term in the Leased Premises at such places as may be determined by Landlord; (e) perform construction on or near the Leased Premises; and (f) post notices of non-responsibility.

ARTICLE 21 - Default by Tenant

(a) The following shall be a default by tenant:

(i) The failure to pay when due an installment of rental, or any other payment required to be made in whole or in part, if the failure shall continue for more than 10 days after written notice that same is past due, and/or

(ii) The abandonment or vacation of the Leased Premises or any part of it and/or

(iii) The failure to observe or perform any other provision of this Lease, if the failure continues for 30 days after written notice to Tenant; if the default cannot reasonably be cured within 30 days, Tenant shall not be in default if Tenant begins to cure the default within 30 days and diligently cures the default; and/or

(iv) The making by Tenant of a general assignment for the benefit of creditors; the filing by or against Tenant of a petition to have Tenant adjudged a bankrupt, or of a petition for reorganization or arrangement under any law relating to bankruptcy (unless a petition filed against Tenant is dismissed within 120 days); the appointment of a trustee or receiver to take possession of substantially all of Tenant's assets located at the Leased Premises or of Tenant's interest in this Lease if possession is not restored to Tenant within 120 days; or the attachment, execution or other judicial seizure of substantially all of Tenant's assets located at the Leased Premises, or of Tenant's interest in this Lease, if the seizure is not discharged within 120 days; and/or

(b) In addition to any other remedies available to Landlord at law or in equity for default, Landlord shall have the immediate option to terminate this Lease and the rights of Tenant by written notice to Tenant. If Landlord elects to terminate, Landlord shall have the right to recover from Tenant as damages any other amount necessary to compensate Landlord for the detriment proximately caused by Tenant's failure to perform its obligations (including the costs and expenses of recovering the Leased Premises and reasonable attorneys' fees) or other amounts permitted by applicable law.

(c) Landlord shall also have the right if Tenant defaults under this Lease to terminate Tenant's right to possession of the Leased Premises (without terminating this Lease) and reenter the Leased Premises and remove all persons and property from the Leased Premises. The property may be stored at Tenant's cost. Landlord shall not be liable to Tenant for loss or damage resulting from an entry by Landlord. Tenant shall pay as additional rental, upon demand, expenses incurred or paid by Landlord because of Landlord's entry. If Landlord terminates the Lease, then Landlord shall mitigate any damages payable by Tenant by promptly using due diligence in attempting to re-rent the premises at the best rental and upon the best terms then obtainable.

(d) If all or any part of the Leased Premises are vacated or abandoned by Tenant, or if Landlord elects to reenter or take possession of the Leased Premises pursuant to legal proceedings or notice, and if Landlord does not elect to terminate this Lease, then Landlord may from time to time, without terminating this Lease, either recover rental as it becomes due or relet the Leased Premises or any part of it for any length of time, rental and conditions that Landlord in its sole discretion deems advisable. Landlord shall have the right to make alterations and repairs to the

Leased Premises. If Tenant has left all or any of its trade fixtures, furniture, furnishings, signs, stock or other personal property in the Leased Premises, that shall not preclude a determination that a vacation or abandonment has occurred.

(e) A reentry or taking possession of the Leased Premises by Landlord shall not be construed to be an election to terminate this Lease, nor shall it cause a forfeiture of rental remaining to be paid during the balance of the Term, unless a written notice of that intention is given to Tenant or the termination is decreed by a court of competent jurisdiction. Notwithstanding a reletting without termination by Landlord because of default by Tenant, Landlord may at any time after reletting elect to terminate this Lease for any default.

ARTICLE 22 - Surrender of Premises

Tenant shall, upon expiration of the Term, or the earlier termination of this Lease, surrender to Landlord, without damage, injury, disturbance or payment, the Leased Premises including, without limitation, all apparatus, , alterations, improvements and additions by either party to, in, upon or about the Leased Premises. If Tenant shall be in default, Tenant shall not have the right to remove trade fixtures, signs and other personal property. They shall remain or become, as the case may be, the property of Landlord. Tenant, at its sole expense, shall immediately repair damage to the Leased Premises caused by Tenant vacating the Leased Premises or by Tenant's removal of trade fixtures, signs and other personal property. Tenant shall comply with all laws and governmental regulations applicable to the removal and repair of the property. Tenant shall not create a disturbance or health problem for customers, agents, invitees or other parties in the Shopping Center as result of the removal or repair. Any property not removed may be deemed by Landlord to be abandoned by Tenant and may be retained by Landlord or may be removed and stored for Tenant, at Tenant's sole cost. Tenant shall surrender the Leased Premises to Landlord free of Hazardous Material and free of any violation of any environmental rule or regulation. Tenant's obligation to observe and perform the provisions of this ARTICLE 22 shall survive the expiration of the Term or earlier termination of this Lease.

ARTICLE 23 - Tenant's Conduct of Business

Tenant covenants to continuously and uninterruptedly operate within the entire Leased Premises the business it is permitted to operate under Reference Provision 1.03, except any portion of the Leased Premises while that portion is untenable because of fire or other casualty. Tenant agrees to conduct its business at all times in a first-class manner consistent with reputable business standards and practices, and to maintain within the Leased Premises a stock of merchandise and trade fixtures adequate to service and supply the usual demands of its customers. Tenant shall keep the Leased Premises in a neat, safe, clean and orderly condition. A vacation or abandonment of other premises by any other tenant, occupant or anchor in the Shopping Center shall not release Tenant from its obligations under this Lease, notwithstanding anything to the contrary contained in this Lease

ARTICLE 24 - Rules and Regulations

Tenant shall require its employees, agents and contractors to comply with the rules and regulations made by Landlord from time to time regarding the operation of the Shopping Center or the Leased Premises including, but not limited to, the following:

(a) No awning or other projections shall be attached to the outside walls of the Leased Premises or the Shopping Center without the written consent of Landlord, except those canopies and signs as noted on the initial construction documents.

(b) Loading and unloading of goods shall be done only at the times, in the areas and through the entrances designated by Landlord.

(c) Garbage shall be kept in the kind of container approved by Landlord's fire and casualty consultants and shall be removed and deposited daily in mass disposal containers in the manner prescribed from time to time by Landlord. Landlord shall provide or designate a service for collection of garbage from designated mass disposal containers.

(d) No loudspeakers, televisions, phonographs, radios, flashing lights, machinery or other devices shall be heard or seen outside of the Leased Premises without the prior written consent of Landlord.

(e) Tenant shall keep its display windows and signs illuminated every day of the Term during the hours designated by Landlord.

(f) Tenant shall not carry on any trade or occupation or operate any instrument, apparatus or equipment which emits an odor or causes a noise outside the Leased Premises or which is offensive.

(g) Tenant shall not put temporary fixtures (including portable trade fixtures, displays and folding tables) for the display of merchandise within 3 feet of either side of any entrance to the Leased Premises. Merchandise displays shall not extend beyond the frontage line of the Leased Premises.

(h) Tenant shall store and stock in the Leased Premises only goods, wares, merchandise and other property necessary for the conduct of Tenant's business.

(i) Tenant shall not use or permit the Leased Premises to be used for living, sleeping, residential or lodging purposes.

(j) Tenant shall not use the plumbing for a purpose other than that for which it is constructed. No grease or foreign substance shall be put in the plumbing, and the expense of any resulting breakage, stoppage or damage (whether on or off the Leased Premises) shall be borne by Tenant.

(k) Tenant shall not in the Joint Use Areas:

(i) To vend, peddle or solicit orders for sale or distribution of any merchandise, device, service, periodical, book, pamphlet or other matter;

(ii) Exhibit any sign, placard, banner, notice or other written material;

(iii) Distribute any circular, booklet, handbill, placard or other material;

(iv) Solicit membership in any organization, group or association or contribution;

(v) Parade, patrol, picket, demonstrate or engage in conduct that might interfere with or impede the use of the Joint Use Areas by any customer, invitee or employee, create a disturbance, attract attention or harass, annoy, disparage or be detrimental to the interest of any of the other tenants;

(vi) Panhandle, beg or solicit funds; nor

(vii) Solicit business.

(l) Tenant shall have the responsibility for protecting the Leased Premises from theft, robbery and pilferage, and shall keep non-customer doors locked.

(m) No symbol, design, name, mark or insignia adopted for or used by Landlord in the Shopping Center shall be used by Tenant without the prior written consent of Landlord.

ARTICLE 25 - Eminent Domain

If the whole of the Premises or so much thereof as to render the balance unusable by Tenant shall be taken under power of eminent domain, this Lease shall automatically terminate as of the date of such condemnation, or as of the date possession is taken by the condemning authority, whichever is earlier, no award for any partial or entire taking shall be apportioned, and Tenant hereby assigns to Landlord any award which may be made in such taking or condemnation, together with any and all rights of Tenant now or hereafter arising in or to the same or any part thereof; provided, however, that nothing contained herein shall be deemed to give Landlord any interest in or to require Tenant to assign to Landlord any award made to Tenant for its relocation expenses, the taking of personal property and fixtures belonging to Tenant, the interruption of or damage to Tenant's business or for Tenant's unamortized cost of Leasehold improvements.

In the event of a partial taking, which does not result in a termination of this Lease, rent shall be abated in proportion to that part of the Premises made unusable to Tenant.

No temporary taking of the Premises or of Lessee's rights therein or under this Lease shall terminate this Lease or give Tenant any right to any abatement or rent hereunder; any award made to Tenant by reason of any such temporary taking shall belong entirely to Tenant, and Landlord shall not be entitled to share therein.

ARTICLE 26 - Attorneys' Fees

If, during the Term or afterwards, either party institutes an action, proceeding or counterclaim against the other relating to this Lease, or a default, the unsuccessful party shall reimburse the successful party for the total amount of court costs, expenses and reasonable attorneys' fees actually incurred up to \$50,000, the parties waiving any statute, rule of law or public policy to the contrary. The parties agree to confirm this agreement in writing at the start of the action, proceeding or counterclaim. The giving of a notice of default by Landlord shall constitute part of an action or proceeding under this Lease, entitling Landlord to reimbursement of its reasonable expenses of attorneys' fees and disbursements, even if an action or proceeding is not commenced in a court of law and whether or not the default is cured. This ARTICLE 26 shall survive the expiration or termination of this Lease.

ARTICLE 27 - Sale of Premises by Landlord

In the event of the sale or exchange of the Leased Premises or the Shopping Center and the assignment of this Lease, Landlord shall be relieved of all liability for the covenants and obligations in or derived from this Lease, or arising out of any act, occurrence or omission relating to the Leased Premises or this Lease so long as the assignee has sufficient capital and operating experience to operate the Shopping Center in a manner reasonably comparable to Landlord. The covenants, representations and obligations of Landlord shall be binding on Landlord only during the period that Landlord has an ownership interest in the Shopping Center.

ARTICLE 28 - Notices

Notices and demands shall be given in writing by personal delivery or sent by certified mail or by nationally recognized overnight courier service, addressed to Landlord and to Tenant at the addresses specified in the Reference Provisions or at the addresses which were last specified by notice by Landlord or Tenant. Notices or demands shall be deemed to have been given, made or communicated on the date of actual receipt, whether they were deposited in the United States mail as certified mail, signature required, with postage fully prepaid, or with a nationally recognized overnight courier service, signature required, as the case may be.

ARTICLE 29 - Remedies

All rights and remedies of Landlord and Tenant under this Lease or at law are cumulative, and the exercise of one or more rights or remedies shall not exclude or waive the right to the exercise of any others. All rights and remedies may be exercised and enforced concurrently, whenever and as often as desirable.

ARTICLE 30 - Successors and Assigns

All covenants, promises, conditions, representations and agreements shall be binding upon, apply and inure to Landlord and Tenant and their heirs, executors, administrators, successors and assigns. The provisions of ARTICLE 19 hereof shall not be affected by this ARTICLE 30.

ARTICLE 31 - Representations

Tenant agrees that Landlord, its employees and agents have made no representations, inducements or promises about the Leased Premises, the Shopping Center or this Lease, or about the characteristics or conditions regarding or pertaining to the Leased Premises or the Shopping Center, unless the representations, inducements and promises are in this Lease. Tenant has independently investigated the potential for the success of its operations in the Shopping Center. Therefore, no claim or liability, or cause for termination, shall be asserted by Tenant against Landlord, its employees and agents, for, and they shall not be liable because of, the breach of any representations, inducements or promises not expressly in this Lease.

Any claim, demand, right or defense by Tenant which is based upon or arises in connection with this Lease or the negotiation of this Lease prior to its execution shall be barred unless Tenant commences an action or interposes a legal proceeding or defense within 3 years after the date of the inaction, omission or occurrence of the event, or the action to which the claim, demand, right or defense relates.

ARTICLE 32 – Waiver

The failure by Landlord or Tenant to insist upon strict performance by the other of any of the covenants, conditions, provisions, rules and regulations and agreements in this Lease, or to exercise a right, shall not be a waiver of any rights or remedies and shall not be a waiver of a subsequent breach or default. A surrender of the Leased Premises shall not occur by Landlord's acceptance of rental or by other- means unless Landlord accepts the surrender in writing. A payment by Tenant or receipt by Landlord of an amount less than the monthly rental shall not, nor shall the endorsement, statement, check, letter accompanying a check or payment of rental, be an accord and satisfaction. Landlord may accept a check or payment without prejudice to its right to recover the balance of rental due and pursue any other remedy. A waiver by Landlord for one tenant shall not constitute a waiver for another tenant.

ARTICLE 33 - Holding Over

If Tenant remains in possession of the Leased Premises after the expiration of the Term without a new lease (even if Tenant has paid and Landlord has accepted rental), Tenant shall be deemed to be occupying the Leased Premises as a tenant from month to month, subject to the covenants, conditions and agreements of this Lease. The monthly rental shall be computed based on 1/12th of the rental payable to Landlord during the last 12 month period of the Term. If Tenant fails to surrender the Leased Premises on the termination of this Lease, Tenant shall, in addition to

other liabilities to Landlord, indemnify, defend and hold Landlord harmless from loss and liability resulting from that failure including, but not limited to, claims made by a succeeding tenant. The exercise of Landlord's rights shall not be interpreted to allow Tenant to continue in possession, nor shall it be deemed an election to extend the Term beyond a month-to-month basis. If Landlord, in its sole discretion, determines to permit Tenant to remain in the Leased Premises on a month-to-month basis, the month-to-month tenancy shall be terminable on 30 days prior written notice given by either party to the other party.

ARTICLE 34 – Interpretation

Only the relationship of Landlord and Tenant is created by this Lease. No Provision of the Lease or act of either party shall be construed to create the relationship of principal and agent, partnership, or joint venture or enterprise.

ARTICLE 35 - Quiet Enjoyment

Landlord has the right, power and authority to enter into this Lease. Tenant, or any permitted assignee or sublessee of Tenant, upon the payment of the rental and performance of Tenant's other covenants, shall and may peaceably and quietly have, hold and enjoy the Leased Premises during the Term. This covenant shall be construed as a covenant running with the land. It shall not be construed as a personal covenant of Landlord.

ARTICLE 36 - Waiver of Redemption

Tenant waives any right of redemption if Tenant is evicted or dispossessed for any cause, or if Landlord obtains possession of the Leased Premises because of the default of Tenant or otherwise. The rights given to Landlord are in addition to rights that may be given to Landlord by statute or otherwise.

ARTICLE 37 - Fees

None.

ARTICLE 38 - Tenant's Property

Except for the willful misconduct of Landlord, its agents or employees, Landlord, its agents and employees shall not be liable, and Tenant waives all claims, for damage to persons, property and Tenant's business sustained by Tenant (or anyone claiming through Tenant) located on the Leased Premises. Property kept or stored on the Leased Premises shall be kept or stored at the sole risk of Tenant, and Tenant shall indemnify, defend and hold Landlord harmless from any claims arising out of damage to the same or damage to Tenant's business, including subrogation claims by Tenant's insurance carrier.

ARTICLE 39 -Lease Status

Within 10 days of Landlord's written request, Tenant shall without charge execute, acknowledge and deliver to Landlord an instrument required under this Lease or an instrument prepared by Landlord containing the commencement and termination dates of this Lease, the Rental Commencement Date, and if true, that (a) this Lease is a true copy of the Lease between the parties, (b) there are no amendments (or stating the amendments), (c) the Lease is in full force and effect and that, to the best of Tenant's knowledge, there are no offsets, defenses or counterclaims of rental or in the performance of the other covenants and conditions to be performed by Tenant, (d) no default has been declared by either party and that Tenant has no knowledge of any facts or circumstances which it believes would constitute a default by either party and (e) any other matters reasonably requested by Landlord. Tenant shall remain liable to Landlord for damages sustained by Landlord because of the failure by Tenant to execute, acknowledge and deliver the instrument. The failure of Tenant to execute, acknowledge and deliver the instrument shall be an

acknowledgment by Tenant that the statements contained in the instrument are correct. Anyone transacting with Landlord shall have the right to rely on the accuracy of the statements contained in the instrument, whether it is signed by Tenant or deemed acknowledged by Tenant pursuant to this ARTICLE 39.

ARTICLE 40 - Recording

Tenant shall not record this Lease, a memorandum, "short form" or other reference to this Lease, without the written consent of Landlord.

ARTICLE 41 - Force Majeure

If either party is delayed, hindered or prevented from the performance of an obligation because of strikes, lockouts, labor troubles, the inability to procure materials, power failure, restrictive governmental laws or regulations, riots, insurrection, war or another reason not the fault of the party delayed, but not including financial inability, the performance shall be excused for the period of delay. The period for the performance shall also be extended for a period equal to the period of delay. Tenant shall not be excused from the prompt payment of rental, additional rental or other payments. It shall be a condition of Tenant's right to claim an extension that Tenant notify Landlord, in writing, within 30 days after the occurrence of the cause, specifying the nature of the cause and the period of time necessary for performance.

ARTICLE 42 - Construction of Lease

Tenant has read and understands this Lease. The rule of construction that a document should be construed most strictly against the party which prepared the document shall not be applied, because both parties have participating the preparation of this Lease.

ARTICLE 43 - Captions

Captions are for convenience and reference only. The words contained in the captions shall not be deemed to explain, modify, amplify or aid in the interpretation, construction or meaning of this Lease. The use of masculine or neuter genders shall include the masculine, feminine and neuter genders. The singular form shall include the plural if the context requires. "Landlord" and "Tenant" means "Landlord" and "Tenant" and "their agents and employees", unless the context requires otherwise.

ARTICLE 44 - Severability

If any provision of this Lease or any paragraph, sentence, clause, phrase or word is judicially or administratively held invalid or unenforceable, that shall not affect, modify or impair any other paragraph, sentence, clause, phrase or word.

ARTICLE 45 - Corporate Tenant

If Tenant is or will be a corporation or partnership or limited liability company of any kind, the persons executing this Lease on behalf of Tenant covenant and represent that Tenant is a duly incorporated or duly qualified (if foreign) corporation or partnership, as the case may be (including without limitation a limited liability corporation and a limited liability partnership) and is authorized to do business in the State where the Shopping Center is located (evidence shall be supplied Landlord upon request). Tenant also covenants and represents

that the person or persons, partner or member executing this Lease on behalf of Tenant is (if a corporation) an officer of Tenant, and is (if a corporation or partnership of any kind) authorized to sign and execute this Lease.

ARTICLE 46 - Entire Agreement

This Lease is the only agreement between the parties for the Leased Premises. An amendment, modification or supplement to this Lease shall not be effective unless it is in writing and executed by the parties.

ARTICLE 47 - No Third-Party Rights

This Lease shall not confer rights or benefits, including third-party beneficiary rights or benefits to anyone that is not a named party to this Lease, including any individual, corporation, partnership, trust, unincorporated organization, governmental organization or agency or political subdivision.

ARTICLE 48 - Financial Statements

(a) Tenant acknowledges that it has provided Landlord with its financial statement or annual report ("Statement") and represents that the Statement is a primary inducement to Landlord's agreement to lease the Leased Premises to Tenant. Landlord has relied on the accuracy of the Statement in order to enter into this Lease. Tenant represents that the information contained in the Statement is true, complete and correct in all material aspects. This representation is a precondition to the Lease.

(b) At the request of Landlord, unless Tenant is a publicly traded company, Tenant shall, not later than 30 days following such request, furnish to Landlord its most recent balance sheet for at least the most recent fiscal year, a statement of income and expense for that year and an opinion of an independent certified public accountant satisfactory to Landlord (or a certificate of the chief financial officer, owner or partner of Tenant) indicating the financial statement has been prepared in conformity with generally accepted accounting principles consistently applied and fairly present the financial condition and results of the operations of Tenant for that year. If Tenant's fiscal year has ended less than 90 days from the time of Landlord's request, then Tenant shall have 90 days to furnish Tenant's balance sheet and statement of income and expense.

ARTICLE 49 - Tenant's Failure

This Lease shall be governed by the laws of the State of Wyoming and shall be deemed made and entered into in Laramie County. If Tenant fails to comply with and perform any of its covenants, conditions or agreements, Landlord shall have the right, but not be obligated, to perform the covenants, conditions or agreements. If Landlord performs any covenants, conditions or agreements, Landlord, its agents or employees may enter the Leased Premises. That entry and performance shall not constitute an eviction of Tenant in whole or in part, nor relieve Tenant from the performance of the covenants, conditions and agreements. Landlord, its agents and employees shall not be liable for claims for loss or damage to Tenant or anyone claiming through or under Tenant.

Further, if Landlord fails to comply with and perform any of its covenants, conditions or agreements hereunder within the period of time specified herein or, if no period of time is specified herein, then within a reasonable time not exceeding thirty (30) days after written notice by Tenant to Landlord, Tenant shall have the right, but not be obligated, to perform the covenants, conditions or agreements that Landlord has failed to perform. In the case of an emergency, Tenant shall have the right to make such temporary, emergency repairs as may be reasonably necessary to prevent such damage to the equipment, inventory or property of Tenant situated in the Leased Premises, or such injury to persons (even if Landlord otherwise bears the obligation to make such repairs under this Lease). The reasonable documented cost of Tenant's performance in order to cure a Landlord default, or carry out emergency repairs, shall be paid by Landlord to Tenant within thirty (30) days after demand. In all events, following failure by Landlord to comply with and perform any of its covenants, conditions or agreements hereunder within the period of time specified herein or, if no period of time is specified herein, then within a reasonable time not exceeding thirty (30) days after written notice by Tenant to Landlord, Tenant may terminate this Lease upon thirty (30) days prior written notice to Landlord. The rights conferred herein are cumulative and not in lieu of other rights which Tenant may have at law or in equity for defaults by Landlord.

ARTICLE 50 - Ownership

Any services which Landlord is required to furnish pursuant to the provisions of this Lease may, at Landlord's option, be furnished from time to time, in whole or in part, by employees of Landlord or Landlord's affiliates or by one or more third parties hired by Landlord or Landlord's affiliates. Tenant agrees that upon Landlord's written request it will enter into direct agreements with the parties designated by Landlord to provide such services, provided that no such contract shall result in Tenant having to pay, in the aggregate, more money for the occupancy of the Leased Premises under the terms of this Lease, or Tenant's receiving fewer services or services of a lesser quality than it is otherwise entitled to receive under the Lease.

ARTICLE 51 — Renewal Options

Tenant may exercise the Renewal Options in Reference Provision 1.12 by giving twelve (12) months written notice to Landlord prior to the expiration of the initial lease term or any renewal terms, provided however, that Tenant shall not be in default of any provisions of this Lease.

ARTICLE 52 — Franchisor Protective Provisions

None.

IN WITNESS WHEREOF, Landlord and Tenant have executed and delivered this Lease as of 9/29/15, 2015.

LANDLORD:

Wyoming Financial Properties, Inc. a Wyoming corporation

By: Lee Karavitis
Name: Lee Karavitis
Title: President

TENANT:

Art Hy
Cheyenne Events Center at Pershing
Plaza LLC

By: _____
Name: _____
Title: _____

Contingent upon Liquor license awarded